



STANDING ORDER NO. L&O/44/2022

STRIKES AND LOCK-OUTS-ROLE OF POLICE-ORDERS REG.

I INTRODUCTION

Strike processions and demolition constitute the principal method adopted by labour to ventilate their grievances against the Management or Government or for securing the acceptance of their demands. The role of the police in industries and labour strikes is to maintain law and order and not to interfere in inter labour management matters, unless the strike is declared illegal by the Government. It is thus essential that the Police conduct themselves in such a way that no impression is conveyed to either party of any partiality. Peaceful picketing to prevent non - strikers by persuasion from resuming work as distinct from the use of force or intimidation, may not necessarily call for police intervention. For breaking the strike, management quite often infiltrates workers loyal to them among the strikers to incite acts of violence etc. so as to discredit the strikers and to justify police intervention for legal action. Police should, therefore, be cautious of such tactics of management before initiating legal action against peaceful strikers so that their conduct may not be interpreted as partisan.

II LEGAL PROVISIONS

The law on the subject is incorporated in the Industrial Disputes Act, 1947. All offences under it, are non-cognizable and no prosecution can be filed without the order of the State Government or an officer authorised under section 34 of the Act.

This however, does not mean that the police are prevented from taking action against strikers for infringement of other laws. It is the prime duty of the police to ensure that loyal workers are not obstructed or intimidated and that no violence takes place or damage caused to property by the strikers or their sympathizers. ACsP & SHO concerned should visit places of labour trouble, watch strike situations and keep in touch with the developments to ensure prompt, proper and adequate police action whenever required. Advance information about the plans and designs of the strikers

should be collected and suitable police arrangements made to guard against any mischief. Often the police have and can serve as an impartial instrument of negotiations to defuse situation.

III GUIDELINES FOR DEALING WITH TYPICAL SITUATIONS

Some typical situations in a strike by the industrial, labour and the legal implications " are explained below:-

- (a) When a strike continues for a long time and the management decides to start work by recruiting new labour or with loyal workers, a critical situation develops. During this period, cases of intimidation, assault, stone-throwing, wrongful confinement, etc. increase. Suitable mobile patrols in the vicinity of the concerns should be maintained and Police arrangements be reinforced especially when shifts change and workers enter or come of the mill/factory etc. While mobile patrolling in the affected area is permitted, no actual escorts should normally be provided by the police either for the loyal workers or to the vehicle carrying the goods of the management.
- (b) **Picketing Gherao**

Offices or factories are often picketed by strikers. So long as the picketing is orderly and peaceful, it is unobjectionable, but if the picketeers indulge in intimidation of loyal worker, legal action can be taken against the offenders. Often loyal workers and/or officers of the management are prevented/restrained from going about their normal job or the management is pre-vented from removing goods from factory etc. In all this, there is an element of criminal intimidation and action under section 506-IPC, 341/342 IPC and/or section 7 Criminal Law Amendment Act can be taken. The latter has a very extensive range and covers not only intimidation and violence but also obstruction, interference with workers ' property and even trailing of loyal workers or loitering with intent to deter loyal workers from going on duty.
- (c) **Stone throwing and assault**

Loyal workers and factory premises are often stoned by strikers in order to intimidate the loyal staff. Such acts would constitute offences under section. 336, 337 or 338-IPC depending on whether an injury is caused or not and the nature thereof; they would also attract the provisions of section 7 Criminal Law Amendment Act.
- (d) Cases of violence against individuals should be dealt with under section 324, 325, 326, 307 or 302 IPC depending on the nature of injury and sections 147, 148 & 149 where five or more persons take part in the assault.

- (e) Similarly loyal workers are sometimes locked strikers, in which case, the offence would be one of wrongful confinement under section 342 IPC.

IV STAY IN STRIKE

- (i) Sometimes resort to what is known as the sit-down or stay - in strike. They employ these tactics in order to prevent management from taking on new labour' to express their resentment against the imposition of certain orders or alleged high-handedness of the management. The modus - operandi is for all attend the factory regularly and thereafter to sit idle. In such cases, the Police cannot do anything except to see that no damage is caused to property. If, however; the management declares "a Lock - Out or the workers continue to occupy the premises after hours of duty, then action may be taken under section 448 IPC viz. House - trespass on the complaint of the management.
- (ii) Lock-out is resorted to by the management when they are unable to come to any settlement with the striking staff. This is generally a measure taken to counter a 'Stay-in' strike. Once a 'lock-out' is declared, it is incumbent on the strikers to leave the premises. If continues to stay thereafter would constitute an offence of trespass, actionable under sections 447/448 IPC.

V HUNGER STRIKE

Strikers or agitator at times resort to hunger strikes with a view to forcing govt intervention for securing immediate redress. This is technically an offence under section 309 IPC. There should, however be no precipitates action in the matter as it is necessary to obtain medical opinion in respect of the strikers (originators) physical condition viz. whether the hunger strike has proceeded long enough to endanger his life, before an arrest is effected under section 309 IPC where removal to a hospital is necessary for medical examination or tests etc. and the individual on hunger strike does not agree to be removed, the strikers or agitator could either be arrested initially under section 151 Cr.P.C. for taking him to the hospital and further action if justified, by medical opinion later, taken under section 309 IPC, or if the circumstances so warrant a case u/s 309 IPC, can be registered straight-way & further action taken.

VI DEMONSTRATION

There is an increasing tendency for organising demonstration at the residence of Ministers and in some cases even officers by those protesting of against certain decisions of the Government. This practice must be stopped and demonstrations/ dharna should only be permitted at offices and not at residence.

Police must not permit demonstration/dharna at residences and take firm action against those trying to organize them at residences.

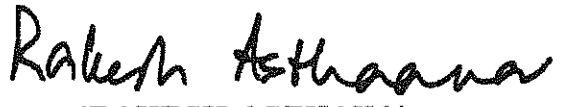
- VII** Terms and conditions of Standing Order Nos. L&O/48/2022, & L&O/11/2022, L&O/10/2022 and as annexed should be followed in true letter & Spirit before granting such permissions to the host any lock-outs & Strike.

VIII SUPERSESSSION CLAUSE

This Standing Order supersedes the previous Standing Order No.256/1989 issued vide No.2445-2645/XXI/348/Spl./88/C&T(AC-IV) dated 10.01.1989.

IX DISCLAIMER

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.


(RAKESH ASTHANA)
COMMISSIONER OF POLICE:
DELHI.
27.05.22 ✓

No. 30251 - 30400 /Record Branch/PHQ dated Delhi, the 27-5-2022

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ(IV)/PHQ with the direction to upload the Standing Order on Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
9. PS/Reader to C.P., Delhi.
10. HAR/PHQ.
11. Librarian/PHQ.

TERMS AND CONDITIONS FOR TAKING OUT
RALLIES/PROCESSIONS/DHARNAS

The permission for taking out a procession/rally/dharna is subject to the following terms and conditions, which are based on the guidelines laid down by the Hon'ble Supreme Court, in Writ Petition (Criminal) No.77 of 2007 read with W.P. (Criminal) No. 73 of 2007 in the matter of "Destruction of Public and Private Properties Vs. Sate of Andhra Pradesh & Ors." and the Delhi High Court in W.P. (Civil) No. 2208/1996, Chandni Chowk Sarv Vyapar Mandal Vs. Lt. Governor, Delhi & Ors:-

1. The organizer shall meet the police to review and revise the route to be taken and to lay down conditions for a peaceful march or protest.
2. An undertaking is to be provided by the organizers to ensure a peaceful march with marshals at each relevant junction.
3. All weapons including knives, lathis and the like shall be prohibited
4. The organizer shall also obtain a "No Objection Certificate" from the land owning agency with regard to holding rally/meeting etc.
5. The organizer shall carry the permission granted to them in original to be shown to a police officer on demand.
6. They will depute a person with whom the police can liaise for various purposes.
7. Organizers would make adequate arrangements for drinking water (by providing tankers) and First Aid/Medical Aid in consultation with the civic/local bodies at the site and also during the procession.
8. The procession will proceed in an orderly manner along the sanctioned route keeping to the left and will not halt on the way or cause impediment to the normal flow of traffic.
9. The organizers shall allow cross traffic at intersection as prescribed by the police.
10. The organizer shall keep more volunteers at these crossing to help the police.
11. No procession would normally occupy more than one fourth of the width of the road. Traffic should be allowed to flow on the road in both directions during any procession. The organizers would keep adequate number of volunteers to held the police to keep flow of

traffic. At road crossing, the processionists would stop to allow any cross traffic to be cleared before proceeding further. In case a road is not sufficiently broad, the local police should regulate the procession suitably.

12. No demonstration/rally/meeting etc. would be allowed on roads and road crossings. Except at places especially earmarked for such a purpose by the police authorities, meeting should be held on grounds or on footpaths only.
13. Organizer of processions will be responsible for ensuring that the route permitted to them by the police authorities is strictly followed.
14. No procession should take more than a maximum of four hours from start to finish. The tail of any procession shall reach the finishing point within four hours of start positively.
15. The participants in the procession will not carry any lathis, firearms, spears, swords and other articles likely to be used as a weapon of offence. Besides the carrying of imitation firearms, resembling sten gun, SAF, Carbine or AK-47, pistol, rifle or any other firearm is also not allowed as it is likely to cause danger to human life or safety or disturbance of public tranquillity or a riot. The participants may carry flags, banners, etc. on sticks purely for display purposes.
16. No participant shall make provocative speeches or use language calculated or likely to inflame passions of the crowd or incite them or promote enmity between different groups or ground of religion, race, place or birth, residence language etc. or act in any manner which is prejudicial to the maintenance of harmony between such groups or disturb public tranquillity.
17. The participants of the procession/rally shall comply with all lawful directions given to them by the Commissioner of Police, Delhi or any other Police Officer on duty.
18. No participant shall act in a manner as to result in damage to public property, assault on Govt. servant, arson, etc.
19. No participant shall destroy, damage or defile any place of worship or any object held sacred by any class of persons with the intention of thereby insulting any religion or any class of persons.
20. No inflammatory slogans etc. would be raised within 200 meters of any place of religious worship.
21. No shamiana etc. would be erected on any road for any function including public meetings.

22. No loudspeaker or public address system shall be used in the venue of the rally/procession without specific permission from the DCP in whose district the procession/rally is being taken out. Loudspeakers shall be used only between 6 a.m. to 10 p.m. as provided in the Noise Pollution (Regulation and Control) Rules, 2000 framed under the Environment (Protection) Act, 1986 and in compliance of Supreme Court orders.
23. The licence shall be responsible to keep his followers under control, failing which he will be prosecuted under the law.
24. No animal like horses, elephants, camels, etc. would be allowed in a rally/procession.
25. Crackers, firing by weapons, etc. is prohibited in any procession.
26. In the event of non-compliance of any of the above conditions/restrictions, the procession/meeting/gathering/religious procession/religious function shall be declared as unlawful and prosecution would be launched against the violators. Regarding use of loudspeakers, action would be taken as per provisions of Noise Pollution (Regulation and Control) Rules, 2000 framed under the Environment (Protection) Act, 1986.